

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STANLEY WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER FRANK
INGRAO, SHIELD NO. 31014, POLICE OFFICER
ADAM DONEWITZ, SHIELD NO. 3994 and POLICE
OFFICER JOHN CHAPMAN, SHIELD NO. 29706,

Defendants.
-----X

Date filed:

Index No.:

SUMMONS

Plaintiff designates
Kings County
as the place of trial.

Basis of Venue:
Location of Occurrence.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 14, 2023

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Avenue – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICE FRANK INGRAO
SHIELD NO. 31014
75th Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

POLICE OFFICER ADAM DONEWITZ,
SHIELD NO. 3994
75th Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

POLICE OFFICER JOHN CHAPMAN,
SHIELD NO. 29706
75th Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STANLEY WILLIAMS,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER FRANK
INGRAO, SHIELD NO. 31014, POLICE OFFICER
ADAM DONEWITZ, SHIELD NO. 3994 and POLICE
OFFICER JOHN CHAPMAN, SHIELD NO. 29706,

Defendants.
-----X

Plaintiff, STANLEY WILLIAMS, by his attorneys FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C. as for his Verified Complaint, alleges the following, upon
information and belief:

PARTIES

1. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK
was and still is a municipal corporation duly organized and existing under the laws of the
State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK,
its agents, servants and employees operated, maintained and controlled the Police
Department of the City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, defendant POLICE OFFICER FRANK
INGRAO, SHIELD NO. 31014 (herein "INGRAO") was employed by defendant THE CITY
OF NEW YORK as a police officer.

4. At all times hereinafter mentioned, defendant INGRAO was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant POLICE OFFICER ADAM DONEWITZ, SHIELD NO. 3994 (herein "DONEWITZ") was employed by defendant THE CITY OF NEW YORK as a police officer.

6. At all times hereinafter mentioned, defendant DONEWITZ was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

7. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN CHAPMAN, SHIELD NO. 29706 (herein "CHAPMAN") was employed by defendant THE CITY OF NEW YORK as a police officer.

8. At all times hereinafter mentioned, defendant CHAPMAN was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

9. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

10. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of defendants INGRAO, DONEWITZ and CHAPMAN as said risk attaches to the public consumers of the services provided by The New York City Police Department.

11. At all times hereinafter mentioned defendant THE CITY OF NEW YORK employed defendant INGRAO.

12. At all times hereinafter mentioned defendant THE CITY OF NEW YORK employed defendant DONEWITZ.

13. At all times hereinafter mentioned defendant THE CITY OF NEW YORK employed defendant CHAPMAN.

14. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duty and were incidental to their otherwise lawful function as agents, servants, and employees of the New York City Police Department.

15. The plaintiff, STANLEY WILLIAMS ("WILLIAMS") was, at all times hereinafter mentioned, a resident of the County of Queens, City State of New York, residing at 250-07 Memphis Avenue.

CONDITIONS PRECEDENT

16. On or about November 10, 2022, plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

17. At least thirty (30) days have elapsed since the service of the Claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

18. On March 3, 2023, the plaintiff complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-h of the General Municipal Law.

JURISDICTION AND VENUE

19. The plaintiff brings this action in the Supreme Court, State of New York, County of Kings, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

20. The plaintiff properly designates Kings as the place of trial. The basis of the venue is the location of the occurrence.

STATEMENT OF FACTS

21. On or about October 18, 2020, at approximately 12:50 p.m., plaintiff was a lawful pedestrian at the premises known as Belmont Avenue and Wyona Street in the County of Kings, City and State of New York.

22. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN, unconstitutionally stopped, questioned, and searched the plaintiff and further assaulted, confined, unduly restrained, falsely arrested and falsely imprisoned plaintiff.

23. Plaintiff WILLIAMS, while a lawful pedestrian was tackled to the ground and assaulted and battered by Defendants INGRAO, DONEWITZ & CHAPMAN.

24. Plaintiff WILLIAMS was held at the 75th Precinct for approximately one (1) day, transferred to Central Booking where he was held for approximately two (2) days,

and was then confined at Rikers Island and Vernon C. Bain Correctional Center from October 20, 2020, through August 18, 2022.

25. Plaintiff WILLIAMS was forced to attend Court multiple times until all charges were dismissed.

26. On September 15, 2022, all charges against plaintiff WILLIAMS were dismissed after the Honorable Claudia Daniels-DePeyster, A.J.S.C. found the testimony of Defendant INGRAO incredible and that the defendants lacked reasonable suspicion to pursue and grab plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION

27. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “26”, inclusive, as though each were set forth at length herein.

28. On October 18, 2020, and thereafter, in the County of Kings, City and State of New York, the defendants, their agents, servants and/or employees wrongfully stopped, searched, arrested, imprisoned, detained, assaulted, and battered plaintiff WILLIAMS without any right or grounds thereof.

29. Defendants INGRAO, DONEWITZ and CHAPMAN injured and maimed the plaintiff WILLIAMS such that he was chased, tackled and unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

30. Plaintiff was detained, arrested, imprisoned, assaulted, and battered by the defendants INGRAO, DONEWITZ and CHAPMAN, their agents, servants and/or employees without probable cause and/or justification.

31. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned stop, search, arrest, detention, imprisonment, assault and battery of plaintiff, WILLIAMS.

32. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, WILLIAMS, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

33. At the time of his unlawful arrest, detention and imprisonment, plaintiff, WILLIAMS, had not committed or attempted to commit any illegal act or crime.

34. At the time of plaintiff's unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

35. The said false arrest and false imprisonment caused plaintiff, WILLIAMS, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

36. Defendants placed plaintiff WILLIAMS under arrest and falsely charged him with criminal possession of a weapon, criminal possession of a firearm, obstructing governmental administration and disorderly conduct.

37. Plaintiff WILLIAMS was in police custody, was unlawfully detained and falsely imprisoned. The unlawful stop, search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

38. It is alleged that defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN, their agents, servants, and employees, maliciously and

intentionally detained, falsely detained, falsely imprisoned, and humiliated plaintiff, WILLIAMS, in violation of his constitutional rights.

39. Plaintiff WILLIAMS was released from continuous custody on or about August 18, 2022.

40. As a direct result of the above defendants' actions, plaintiff, WILLIAMS, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress, and damage to reputation, some, or all of which may be permanent.

41. Plaintiff, WILLIAMS, suffered – and continues to suffer – greatly, was and is physically and emotionally traumatized by this excessive use of force, detention, and imprisonment.

42. The false criminal arrest and wrongful imprisonment of plaintiff, WILLIAMS, because of defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

43. As a direct and proximate result of defendants' actions, plaintiff, WILLIAMS, was deprived of rights, privileges, and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

44. As a result of the foregoing, plaintiff, WILLIAMS, demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

45. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "44," inclusive, as though each were set forth fully at length herein.

46. On October 18, 2020, in the County, City and State of New York, plaintiff was assaulted and battered by INGRAO, DONEWITZ and CHAPMAN employed by defendant, THE CITY OF NEW YORK.

47. Defendants commenced a criminal proceeding against plaintiff knowing that plaintiff had not committed any of the alleged criminal acts.

48. On September 15, 2022, the criminal action was terminated in favor of the plaintiff when the judge found that the testifying officer was not credible and that the stop and arrest was not proper.

49. Defendants lacked probable cause for the arrest and criminal proceeding, to wit, the defendants did not witness any criminal acts, the defendants did not observe, nor did they have any credible evidence to support their charges against plaintiff.

50. Despite this lack of probable cause, known to defendants immediately and prior to the arrest of plaintiff, defendants still falsely arrested plaintiff and maliciously prosecuted him for crimes he did not commit, filing a complaint lacking probable cause and based upon fraud, perjury, and misrepresentations.

51. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff for crimes he did not commit, from October 20, 2020, until September 15, 2022, when the criminal action was terminated in his favor.

52. As a result of the above-mentioned, the plaintiff, WILLIAMS, was injured, became sick, sore, lame, and disabled, and upon information and belief, will continue to suffer from said injuries.

53. As a result of the foregoing, plaintiff, WILLIAMS, demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

54. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "53," inclusive, as though each were set forth fully at length herein.

55. The actions of defendants heretofore described constitute an unlawful stop, search, arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff WILLIAMS' civil rights.

56. Defendants INGRAO, DONEWITZ and CHAPMAN deprived plaintiff WILLIAMS of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

57. Defendants INGRAO, DONEWITZ and CHAPMAN violated the civil and constitutional rights of plaintiff WILLIAMS as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

58. Defendants INGRAO, DONEWITZ and CHAPMAN actions were undertaken under the color of law and would not have existed but for said defendants using their official power.

59. The supervisors and policy-making officers of defendant THE CITY OF NEW YORK and its Police Department have, as a matter of policy, failed to take steps to terminate the above-detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

60. Defendant THE CITY OF NEW YORK and its Police Department has sanctioned the above-described policy and practices through its deliberate indifference to the effect of the said policy upon the constitutional and civil rights of plaintiff WILLIAMS and others similarly situated.

61. Defendant THE CITY OF NEW YORK and its Police Department as part of its custom and practice and/or practice of racial profiling and/or meeting arrest or summons quotas, illegally stopped and frisked civilians under their “Stop, Question and Frisk” policy which was approved either officially or tacitly.

62. That in the class action lawsuit of David Floyd et. al. v. City of New York, et. al., the Honorable Shira A. Scheindlin found that a preponderance of evidence showed that defendants’ policy of establishing performance standards and demanding increased levels of stop and frisks resulted in a putative class of aggrieved citizens.

63. That said policy and custom of defendant CITY OF NEW YORK violated the rights and liberties of plaintiff as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C. 1983, 1986 and 1988.

64. As a result of the foregoing, plaintiff WILLIAMS demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

65. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “64,” inclusive, as though each were set forth fully at length herein.

66. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants INGRAO, DONEWITZ and CHAPMAN with the

knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

67. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants INGRAO, DONEWITZ and CHAPMAN, with the knowledge that said police officers lacked the deportment to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

68. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants INGRAO, DONEWITZ and CHAPMAN, with the knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

69. In fact, Defendant THE CITY OF NEW YORK, retained in its employ police officers, including defendants INGRAO, DONEWITZ and CHAPMAN, knowing that said officers had multiple disciplinary complaints made and substantiated against them, in addition to civil rights lawsuits against them related to their improper conduct.

70. As a result of the foregoing, plaintiff WILLIAMS has suffered serious and severe emotional distress, personal injuries, and loss to his reputation.

71. As a result of the foregoing, plaintiff WILLIAMS demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

72. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "71," inclusive, as though each were set forth fully at length herein.

73. That the aforementioned occurrences, to wit: the unconstitutional stop and search, false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff WILLIAMS; the assault and battery committed by defendants against plaintiff WILLIAMS; the violation of plaintiff's civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff WILLIAMS.

74. As a result of the foregoing, plaintiff WILLIAMS, demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

75. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "74," inclusive, as though each were set forth fully at length herein.

76. Defendants' INGRAO, DONEWITZ and CHAPMAN conduct towards plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

77. Defendants INGRAO, DONEWITZ and CHAPMAN acted with the desire to cause plaintiff WILLIAMS mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

78. Defendants INGRAO, DONEWITZ and CHAPMAN acted with utter and reckless disregard for the consequences of their actions.

79. As a result of the foregoing, plaintiff WILLIAMS, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

80. As a result of the foregoing, plaintiff WILLIAMS demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

81. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "80," inclusive, as though each were set forth fully herein.

82. Upon information and belief, defendant, THE CITY OF NEW YORK, through defendants INGRAO, DONEWITZ and CHAPMAN, and potentially other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiff WILLIAMS to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

83. As a direct and proximate result, plaintiff suffered injuries and damages described above.

84. As a result of the foregoing, plaintiff WILLIAMS, demands judgment against defendants THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

85. That by reason of the foregoing, plaintiff, WILLIAMS, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress, and other

injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

86. Plaintiff WILLIAMS suffered a deprivation of his civil rights and liberty, was falsely arrested and falsely imprisoned, the use of excessive and unnecessary force was used against him; he was assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

87. Plaintiff was deprived of his freedom.

88. As a result of the aforementioned acts, the defendants violated the rights of plaintiff WILLIAMS, secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

89. Plaintiff WILLIAMS was caused to be injured and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

90. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

91. As a result of the aforesaid, plaintiff WILLIAMS was damaged in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff, STANLEY WILLIAMS, respectfully demands judgment against defendants, THE CITY OF NEW YORK, INGRAO, DONEWITZ and CHAPMAN, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs, and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
November 14, 2023

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Avenue – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

The undersigned, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

The undersigned is the attorney of record for the plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; that the same is true to affirmant's own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true. The reason this Verification is made by the affirmant and not plaintiff is that the plaintiff resides outside of the county wherein the affirmant maintains his offices.

The grounds for affiant's belief as to all matters not stated upon affiant's knowledge are as follows: conversations with the plaintiff and review of various documents related to this matter.

Dated: New York, New York
November 14, 2023



NICOLAS BAGLEY, ESQ.